

1 STATE OF OKLAHOMA

2 2nd Session of the 60th Legislature (2026)

3 HOUSE BILL 4412

By: Blancett

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6 AS INTRODUCED

7 An Act relating to Medicaid; creating the ADvantage
8 Waiver Home and Community-based Services for Seniors
9 Revolving Fund; stating the purpose; providing for
10 codification; providing an effective date; and
11 declaring an emergency.

12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 1019 of Title 56, unless there
15 is created a duplication in numbering, reads as follows:

16 There is hereby created in the State Treasury a revolving fund
17 for the Oklahoma Health Care Authority to be designated the
18 "ADvantage Waiver Home and Community-based Services for Seniors
19 Revolving Fund". The fund shall be a continuing fund, not subject
20 to fiscal year limitations, and shall consist of all monies received
21 by the Oklahoma Department of Human Services from state-appropriated
22 funds, federal funds, donations, grants, and contributions from any
23 public or private source and designated for the purpose set forth in
24 this section. All monies accruing to the credit of said fund are

1 hereby appropriated and may be budgeted and expended by the Oklahoma
2 Health Care Authority for the purpose of providing home and
3 community-based services to persons at risk of placement in a
4 nursing facility but who elect to be served in a home and community-
5 based setting in lieu of nursing facility services. Expenditures
6 from said fund shall be made upon warrants issued by the State
7 Treasurer against claims filed as prescribed by law with the
8 Director of the Office of Management and Enterprise Services for
9 approval and payment.

10 SECTION 2. This act shall become effective July 1, 2026.

11 SECTION 3. It being immediately necessary for the preservation
12 of the public peace, health or safety, an emergency is hereby
13 declared to exist, by reason whereof this act shall take effect and
14 be in full force from and after its passage and approval.

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16 60-2-15900 TJ 1/8/2026

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